

KMVTECH EDUCATION**IPL1 · Module 6****Patents**

Lesson: Patentability and rights

Student Lesson Notes

Study with the online lessons. Prefer primary sources (Constitution, statutes, treaties, cases). © KMVTECH Education · September 2026.

1. CORE IDEA

A patent grants exclusive rights over an invention that is new, involves an inventive step (non-obvious) and is capable of industrial application. Certain subject-matter is excluded (e.g. discoveries, scientific theories, methods of medical treatment in some systems, plants/animals in others).

The patent bargain: full disclosure of the invention in return for time-limited exclusivity (typically 20 years from filing). Claims define the scope of protection.

Rights include making, using, offering for sale, selling and importing the patented product or process. Exceptions include experimental use, prior use, and compulsory licences under TRIPS flexibilities.

- Pharmaceutical and agrochemical patents raise acute access and public-health issues in developing countries; TRIPS flexibilities (compulsory licensing, parallel importation) are policy tools.

2. DETAILED RULES AND APPLICATION

Example: a new pharmaceutical compound that meets novelty, inventive step and industrial application may be patented; a mere discovery of a natural substance usually is not.

Novelty + inventive step + industrial application + patentable subject-matter = eligibility; claims then define the monopoly.

3. UGANDA / PRACTICE, METHOD AND TRAPS

Uganda's Industrial Property Act and regional options (ARIPO) govern patents. Examination capacity and the use of TRIPS flexibilities affect access to medicines and local innovation strategy.

Exam trap: treating every technical idea as patentable without the three-part test, or ignoring compulsory-licence and public-health flexibilities.

Method: assess patentability criteria → examine claim scope → map exclusive rights → test exceptions and flexibilities → consider enforcement and licensing strategy.

Prepares for designs and the final enforcement/policy module.

SELF-TEST QUESTIONS

Attempt these before the platform practice quiz.

1. What are the three core patentability criteria?
2. What is the typical patent term?
3. What do claims define?
4. Name two TRIPS flexibilities relevant to medicines.
5. Why is disclosure required?
6. What subject-matter is often excluded?

Exam tip: Three-part test first; then claims and flexibilities.

CHECKLIST BEFORE YOU LEAVE THIS LESSON

- I can state the main instrument(s) or Cap number.
- I can explain the core rule in my own words.
- I can apply the rule to a short Uganda / regional fact pattern.
- I know the common exam trap for this topic.
- I know how this lesson links to the next module.

Next step: Complete the online practice quiz for this lesson, then continue on the platform.